

7.

CASE #	CASE NAME	HEARING NAME
CVPS2505991	ANTHONY VS RPK DEVELOPMENT CORPORATION	MOTION TO SET ASIDE DEFAULT ON COMPLAINT OF MELVIN ANTHONY, JR. BY 760 TOWING, LLC

Tentative Ruling: Discretionary relief from a default pursuant to 473(b) requires that the motion must be filed within six months of the clerk’s entry of default and also within a “reasonable time” after discovery of the default. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 234.) A delay of three or more months or more is an unofficial standard under which courts will routinely deny relief unless there is a satisfactory explanation for the delay. (*Stafford v. Mach* (1998) 64 Cal.App.3d 1174, 1184.) The time runs from the entry of the default, not the default judgment. (*Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273.)

Relief under C.C.P. §473.5 must be sought within a “reasonable time” and in no event later than two years after entry of default judgment or 180 days after service of written notice that default or default judgment has been entered, whichever comes first. (C.C.P. §473.5(a); *Trackman v. Kenney* (2010) 187 Cal.App.4th 175, 180.) The notice of motion must be accompanied by a declaration showing defendant’s lack of actual notice and that this lack of notice was not caused by his or her avoidance of service or inexcusable neglect. (C.C.P. §473.5(b); *Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1319.) The defendant must also file with the notice of motion a copy of the answer, motion or other pleading proposed to be filed in the action. (C.C.P. §473.5(b).)

The court may be asked to grant equitable relief from a default judgment whenever the “extrinsic fraud or mistake” is discovered; the only time requirement is that a party is expected to proceed diligently to seek relief. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984.) Relief is generally available only for “extrinsic fraud or mistake,” but it does not require fraud or mistake in the strict sense—the terms “tend to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing.” (*In re Marriage of Park* (1980) 27 Cal.3d 337, 342.) “Extrinsic fraud occurs when a party is deprived of the opportunity to present a claim or defense to the court as a result of being kept in ignorance or in some other manner being fraudulently prevented by the opposing party from fully participating in the proceeding,” while “[e]xtrinsic mistake is found when [among other things] ... a mistake led a court to do what it never intended....” (*County of San Diego v. Gorham* (2010) 186 Cal.App.4th 1215, 1228-1229.) But “extrinsic fraud and extrinsic mistake are unavailable when a party’s own negligence allows the fraud or mistake to occur.” (*Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 29.) And the fraud or mistake must be extrinsic rather than intrinsic, in the sense that the party must have been denied the opportunity to be heard. If the fraud or mistake goes to the merits of the action, or occurred at trial, it is deemed “intrinsic” and not ground for relief. (*In re Marriage of Thorne & Raccina* (2012) 203 Cal.App.4th 492, 505.) “[I]f a party has been given notice of an action and has not been prevented from participating therein,” relief must be denied because “[h]e has had an opportunity to present his case to the court and to protect himself from mistake or from any fraud attempted by his adversary.” (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 472.)

Before analysis of Defendant 760 Towing, LLC’s motion, the court addresses the proof of service on file for Defendant. The proof of service filed with the court on 9.10.25 is deficient. The Proof of Service of Summons form POS-010 in section 3(a) shows that the party served was “760 Towing, LLC “Manager”. In section 3(b) the section is left blank

as to whom was served or their relationship to the party named in section 3(a). Additionally, the server was a Marissa Brooks, who indicated she was not a registered California process server, so no rebuttable presumption under CCP 647 applies. However, in Plaintiff's opposition to the motion to set aside default, attached as Exhibit B, is an unfiled Proof of Service form POS-010 indicating that 760 Towing, LLC was served via their "account/owner Brianna Madrigal" on the same date, 9.10.25, later in the day than Ms. Brooks' contact. Without addressing the issue of Plaintiff acting as witness to service when Ms. Brooks was present, the court deems that there is a sufficient basis to deem that service was properly completed by RSO Deputy Huggins on 9.10.26.

The Request for Entry of Default was entered on 10.17.25 and the proof of service shows that the request for entry of default was mailed to Defendant 760 Towing LLC on 10.15.25. Defendant's motion to set aside was filed on 5.01.26, outside of the 180 day time permitted under CCP 473.5 and 473(b). Additionally, Defendant does not claim lack of actual notice. As pointed out by Plaintiff, the Declaration submitted by Oscar Baez who identifies himself as the owner of the residence, concedes that Ms. Brianna Arteaga Madrigal is the registered agent for the LLC. Lastly, the court finds no basis under an equitable relief claim to set aside the default, as there has been no showing of any type of extrinsic fraud or mistake that denied Defendant the opportunity to be heard.

On Plaintiff's Objections the court DECLINES to RULE.

Motion to Set Aside Default of Defendant 760 Towing, LLC DENIED.

Case Management Conference confirmed for 7.29.26.